

that the assailant could have been part Pacific Islander. But he didn't provide such a declaration. The employees of the 7-Eleven where the incident took place could not identify the assailant. (Id. at 6:40-41.) There also does not appear to be any evidence tying the temporary worker to the incident. It is just too speculative.

As noted by Defendant, the only evidence tying Ability to the incident is the fact that the assailant was driving a white van, and Ability had white vans in the area. However, this is speculation, just like the speculation that the assailant could possibly have been mixed race Black and Hispanic. While Ability admits that it has white vans, they are not the only owners of white vans. No one has ever claimed that the van had any lettering or identifying marks that the van belonged to Ability. No one claims that the clothing on the assailant identified him as working for Ability. Because speculation is not evidence, speculation cannot create a triable issue of fact precluding summary judgment. (*Apex Solutions, Inc. v. Falls Lake Mgt. Co.* (2024) 100 Cal.App.5th 1249, 1257.)

Here, there is only speculation that the tall, Black man driving a white van was an employee of Ability. Nothing reasonably inferable from admissible evidence connects Ability to the incident. Ability has provided evidence that it did not employ a Black man at the time of the incident, which negates completely Plaintiff's claims of negligence and/or vicarious liability for an assault by a Black man. In order to be vicariously liable for the acts of an employee, the individual must be an employee acting in the course and scope of his employment. (*Jeewarat v. Warner Bros. Entertainment, Inc.* (2009) 177 Cal.App.4th 434-435.) Here, there is no evidence that the assailant was an employee, much less one acting in the course and scope of employment by Ability.

Plaintiff relies only on speculation that the Black man he saw was in fact, not Black, as he repeatedly has stated, but instead, Pacific Islander, as to whom there is no evidence connecting to the incident, nor any Declaration nor testimony. Accordingly, Defendant has met its burden on this motion and the burden shifted to Plaintiff to create a triable issue of material fact. (CCP § 437c(p)(2).) Plaintiff failed to meet this burden.

Ruling: Grant motion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504847	JIMENEZ VS AMAZON.COM SERVICES, LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Plaintiff Delia Diaz Jimenez alleges that she began working for Defendant Amazon on 10/27/20 as a Fulfillment Associate, processing returns. In November 2024, Plaintiff suffered a back injury and went on approved medical leave. While on leave, Defendant advised Plaintiff that it had not received medical documentation for her leave, and Plaintiff re-submitted it again. Plaintiff learned that Defendant had placed her back on

the schedule while on her approved leave time, causing her to accrue Unpaid Time Off (UPT) balance to fall into the negative. When Plaintiff returned to work, she attempted to talk to the onsite Human Resources team, including Defendant Amber Vodola, who said Plaintiff needed to talk to the Central HR team. But before Plaintiff could, Defendant terminated Plaintiff for having a negative UPT balance. On 8/13/25, Plaintiff filed her complaint. After the court sustained Defendants' demurrer to the emotional distress claims, Plaintiff filed the First Amended Complaint (FAC) on 2/17/26. The FAC asserts: (1) disparate treatment – disability discrimination; (2) failure to engage in the interactive process; (3) failure to accommodate; (4) retaliation; (5) whistleblower retaliation (Labor Code §1102.5); (6) wrongful termination in violation of public policy; (7) intentional infliction of emotional distress; and (8) negligent infliction of emotional distress.

Defendant Amazon demurs to the 7th and 8th causes of action for intentional and negligent infliction of emotional distress on the grounds that they fail to state facts sufficient. It argues that there are minimal changes from the original complaint in that Plaintiff only added two factual allegations in ¶15-16. It argues that personnel management decisions cannot support an IIED claim, as there are no extreme and outrageous conduct alleged. It also argues Plaintiff has not pled severe emotional distress. For NIED, they argue that there is no allegation of duty and has only pled intentional conduct. It contends that the claims are preempted by Worker's Compensation exclusivity.

In opposition, Plaintiff argues that she properly pled IIED and NIED as she pled the ultimate facts and whether conduct is extreme and outrageous is a factual issue for the jury. She argues duty is found based on the employment relationship. She argues worker's compensation exclusivity does not apply because it arises from discriminatory practices or conduct in violation of public policy. Alternatively, she requests leave to amend.

In reply, Defendants repeat the arguments from the moving papers.

Analysis

A. Meet & Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via phone, in person or videoconferencing before filing a demurrer or motion to strike five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §430.41(a)(3), 435.5(a)(3).) Defense counsel complied. (Zararof Decl. ¶15.)

A. Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Civ. Proc. Code, § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

1. Worker's Compensation Exclusivity

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Workers' Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Labor Code § 3600(a).) If these conditions do not exist, the employee may bring a civil action. (Labor Code §§3600-3602.) As stated in *Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund* (2001) 24 Cal.4th 800, 811-812, if the acts are a normal part of the employment relationship or worker's compensation process, or the motive does not violate a fundamental state policy, then the cause of action is barred; otherwise, it may go forward. The court focused on whether the "acts or motives that establish the elements of the cause of action and considers whether these acts or motives constitute 'a risk reasonably encompassed within the compensation bargain. [citation.] If they do, then the exclusive remedy provisions govern and bar the cause of action. If they do not, then the exclusive remedy provisions are inapplicable because the malfeasant is *no longer* acting as an 'employer' as understood in these provisions." (*Id.* at 819-820.) The exclusivity rule does not apply when the distress arises out of an employer's illegal discrimination practice or harassment. (*Nazir v. United Airlines* (2009) 178 Cal.App.4th 243, 288.)

Here, the claims are based on underlying violations of FEHA and Labor Code. That is sufficient for pleading purposes to remove it from the Worker's Compensation Act.

2. IIED

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe

emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*) “[W]hether conduct is outrageous is ‘usually a question of fact’ ... [However] many cases have dismissed intentional infliction of emotional distress cases on demurrer, concluding that the facts alleged do not amount to outrageous conduct as a matter of law.” (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.) Demotions, failing to promote, failing to transfer, terminating, and failing to provide adequate work assignments all constitute personnel management activity and do not give rise to an intentional infliction of emotional distress cause of action. (*Janken v. GN Hughes Electronics* (1996) 46 Cal.App.4th 55, 79-80.) “A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.” (*Id.*) In *Janken*, the plaintiffs alleged that they were terminated unlawfully because defendant followed a policy of terminating or forcing the resignation of employees over the age of 40 without good cause. (*Id.* at 61.) The Court found that allegations of discrimination were not sufficient to support a claim of intentional infliction of emotional distress. (*Id.*)

In the employment context, intentional infliction of emotional distress may be met if there is both a violation of FEHA and satisfies the elements. Cases still require extreme and outrageous conduct. (See *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 945-946 [finding that IIED based on FEHA was not extreme or outrageous; *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102 [same].)

Plaintiff has not made sufficient changes from the original complaint to support extreme and outrageous conduct. Plaintiff makes conclusory allegations about extreme and outrageous conduct. (FAC ¶72.) The allegations in ¶73 still relate to personnel management decisions and general FEHA claims, which is not extreme and outrageous under *Janken*. This is nothing more than reiterating FEHA and bootstrapping it to extreme and outrageous conduct. The court sustains the demurrer.

3. NIED

The elements of negligent infliction of emotional distress are: (1) legal duty to use due care; (2) breach of such legal duty; (3) damage or injury; and (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.) There is no tort of negligent infliction of emotional distress, but instead it is a form of negligence. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 796 n.4.) Negligent infliction of emotional distress is divided into two claims, direct victim claims or bystander claims. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072-1074; *Smith v. Pust* (1993) 19 Cal.App.4th 263, 273.)

This is not a bystander claim. A direct victim claim requires a duty—either imposed by law, assumed by the defendant, or exist by a special relationship. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985.) “[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant’s breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests.” (*Id.*)

Here, Plaintiff fails to plead that Defendant assumed the duty for Plaintiff’s emotional condition and provides no applicable authority that an employer-employee relationship is a special relationship for purposes to impose a duty of Plaintiff’s emotional state. Plaintiff relies on *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1076, which involved a direct victim claim in a medical malpractice action—not an employment action. She also cites to *Ragland v. U.S. Bank National Association* (2012) 209 Cal.App.4th 182, 206-207, which involved whether a lender owes a duty to a borrower to support emotional distress based on negligence (it did not). The only other citation provided by Plaintiff is Labor Code §6403, which provides:

No employer shall fail or neglect to do any of the following:

- (a) To provide and use safety devices and safeguards reasonably adequate to render the employment and place of employment safe.
- (b) To adopt and use methods and processes reasonably adequate to render the employment and place of employment safe.
- (c) To do every other thing reasonably necessary to protect the life, safety, and health of employees.

This general statement does not support that Defendant’s owe a duty to Plaintiff’s emotional state—nor is there any case law interpreting such. “These general statutes do not require an employer to take all conceivable steps to ensure safety, nor forbid an employer from adopting practices or methods which might conceivably result in harm to an employee.” (*California Correctional Supervisors Organization, Inc. v. Department of Corrections* (2002) 96 Cal.App.4th 824, 831.) Plaintiff pleads no facts demonstrating a duty owed or provides case law that a duty is owed as a matter of law.

Also, Plaintiff’s allegations involve intentional conduct—not negligence. (FAC ¶11-19, 82.) “It is clear however, that there was no duty not to discharge defendants and that any actions by the employer were intentional, not negligent. ‘An employer’s supervisory conduct is inherently “intentional.” ’ ” (*Semore v. Pool* (1990) 217 Cal.App.3d 1087, 1105.) As such, the court sustains the demurrer with one final 30 days leave to amend.